



Real Data over Developer Dogma

Environmental Concerns related to the Data Center Ordinance draft and the argument for a moratorium

Kirk Lyman-Barner

September 8, 2026

At our last meeting, the Mayor and City Manager told me personally they were there to “just observe and listen.”

That was a deception. They had a plot.

They brought the developers to hijack our meeting.

That will not happen tonight. Tonight is our meeting. Our concerns.



**Let's be
factual.**

#Transparency

Last Friday, one official from the County even tried to shame us for asking for records after the County facilitated the \$1 gift of a half million-dollar taxpayer owned property that the County previously owned.

Maybe they were trying to distract the Attorney General from remembering they were out of compliance with the O.R.A.

David Baldwin, Chairman
Jim Beal
Clye Jones
Kazzy Smith
Mark Waddell



Scott Carver, County Administrator
Terri Wooden, County Clerk
Hendren Hootle, County Attorney
Lawrence Reddick, Finance Director

September 4, 2026

VIA ELECTRONIC MAIL
Luke Lyman-Banner

Re: Open Records Request

Dear Mr. Lyman-Banner:

The County has completed its search in response to your open records request concerning the proposed data center and communications involving the County, its Commissioners, and the developer. As the County has previously stated, the proposed site is located within the City, and the County has not been involved with the developer, has not participated in discussions or negotiations concerning the project, and is not a party to any agreement related to it.

Nevertheless, in order to fully respond to your request, the County conducted the necessary search for the email, text messages, notes, communications, and other records described in your request. That process included research by the County's IT provider, approximately two hours of staff time by the County Clerk, review and consultation with the County Attorney, and additional administrative staff time.

That search has now been completed and produced no responsive records. Simply stated, the communications requested do not exist because the communications described in the request did not occur.

Although there are no responsive records to provide, the search itself was not without cost. The County incurred \$75 in direct IT research costs alone. When staff time, legal review, and other administrative resources are considered, we estimate that the actual cost associated with researching and responding to this request was approximately \$300. Those costs are ultimately borne by the taxpayers of the County.

The estimate previously provided to you was \$70.20, substantially less than the County's actual cost of responding to the request. Because the search produced no responsive documents, there are no records for you to retrieve. Nevertheless, should you wish to remit the previously quoted amount of \$70.20 toward the costs incurred as a result of your request, the County would certainly accept that payment, provided such payment is permissible under applicable law. Doing so would offset at least a portion of the expense that would otherwise be borne by the County's taxpayers.

The County respects the public's right to request public records and takes its obligations under the Georgia Open Records Act seriously. At the same time, responding to broad requests of this nature requires real public resources, even when a thorough search ultimately confirms that no responsive records exist.

We hope the results of this search provide clarity regarding the County's involvement in this matter: the County has identified no communications, agreements, or other responsive records between the Commissioners and the developer concerning the proposed data center.

Sincerely,

Terri Wooden
County Clerk

Terri L. Wooden

County Clerk/Records Manager

Sumter County Board of Commissioners

500 West Lamar Street

Americus, GA 31709

Phone: (229) 928-4500 x1157

Fax: (229) 928-4564

Email: twooden@sumtercountypa.us

June 10, 2026: “I will tell you the city of Americus is very concerned, but at this time still on board [.....]there is a group in the community that’s coming out, protesting, and trying to get a moratorium in place.”

Note: The City Council Meeting at which our group spoke was July 23, 2026.

From: Rusty Warner <RustyWarner@msn.com>

Sent: Wednesday, June 10, 2026 8:52:06 AM

To: Tony Di Benedetto <tony@launchcapital.ca>; Susan Warner <susan_warner@msn.com>

Cc: Paul Di Benedetto <paul@boltdigitaltech.com>; Justin Di Benedetto <justin@launchcapital.ca>

Subject: Re: Checking in.

Tony,

The documents are over to you for your attorney to review and we are still in need of putting the economic impact agreement as well getting the jobs, wages, and investment along with a clawback.

Since our last meeting a lot of counties in Georgia are having second thoughts on this type of project.

I feel we need to have a discussion on this and go over what is going on and how to move forward.

I will tell you the city of Americus is very concerned, but still at this time on board.

They and the county both need this kind of tax base growth and they understand that, but there is a group in the community that’s coming out, protesting, and trying to get a moratorium in place.

We need to talk and come up with a plan to help work this out.

Rush says he first learned about Liberty's agreement with the Payroll Development Authority sometime in July.

Americus Mayor discusses possible impact of data center proposal

Published 8:53 pm Wednesday, August 12, 2020

By Joshua Windus



Americus Mayor Travis Rush. (File photo)

Americus Mayor Travis Rush recently interviewed with the Americus Times-Recorder concerning plans for a data center in the Frank Myers Industrial Park in Americus. The Payroll Development Authority, or PDA, sold the proposed site to Liberty for \$1.00 in exchange for an agreement between the PDA and Liberty. The agreement includes restrictions on when generators can run, how many jobs must be created by the end of the project, and other details. The Americus City Council has also drafted an ordinance to regulate the project, though it has not been passed yet.

Tax revenue is a major selling point for industries bringing new projects. Americus citizens have expressed concerns that a tax abatement agreement might be in place. Rush stated that there is no abatement agreement between the City of Americus and Liberty Data Centers.

Rush says he first learned about Liberty's agreement with the Payroll Development Authority sometime in July. However, the issue was already on his radar, with neighboring communities in Georgia seeing interest from data center developers. "We always knew that there were people interested in Americus."

Rush says they have been in contact with Liberty, sharing concerns over how the data center would affect citizens. "What we found is, anything that we have put in... restriction-wise, they have already agreed to."

During the interview, Rush sought to clarify an earlier comment about the relationship between Liberty Data Centers and the City of Americus. "Liberty is not helping us to write an ordinance."

The City of Americus can use an ordinance to regulate data centers, but not ban them. The Americus Times-Recorder asked about the legal ramifications of a moratorium. Rush outlined the degree to which the City could restrict a data center's activity. "If we create an ordinance that goes against their agreement to an extent where it's not negotiable, then yeah, you can run into legal problems there. But just to say outright, if we pass a resolution for a moratorium, is it legally an issue? Not necessarily."

Rush said that building a relationship with Liberty was important. "Let's look at it as what is being presented to us, and not what you're seeing on TV, not what you're seeing on Facebook."

The City also has to take industry standards into account when creating reasonable regulations. "We know that there's industry standards that we've seen or heard from other entities, and if we do this, can they meet this?" If not, if they can't do it, it's a deal-break."

During a City Council meeting, Kirk Lyman-Barner, a local businessman, asked the City to put a moratorium on data centers to provide time to craft an ordinance.

Rush sees moratoriums as problematic, since they could send a signal to other businesses that may be looking at Americus. "Does business want to come if a group of people can influence your government just to stop, just because they don't agree with all the facts?"

The Americus Times-Recorder asked if Rush felt the penalties in the agreement were sufficient to incentivize Liberty Data Centers to follow the guardrails put in place. He pointed to the investment Liberty will provide and their past work with the Bitcoin mining facility. He sees clear incentives for them to follow the agreement. "I think no one intentionally tries to impact a community or break laws."

Many citizens are concerned about the strain a data center could put on local infrastructure. Rush has a different view, pointing to the tax revenue a project like a data center would generate. He believes the funds would help Americus address infrastructure issues stemming from neglect. "This project can help us to rebuild our water system, can help us to fix our water treatment plant, where there are some challenges even in our current state."

He also believes a new business could encourage others to consider coming to Americus. "This is very new and different for the City of Americus, which could be a great asset to the City of Americus."

During a City Council meeting, Council Member Daryl Dowdell questioned the City Attorney about bribery laws. The Americus Times-Recorder asked if the Mayor, Council, or staff took any benefits from Liberty. Rush said that Dowdell did not explain why he asked the question.

Rush stated that he was not aware of anyone else having been offered anything. He did say that he could speak for himself. "I have not been offered anything."

Rush welcomes citizens to reach out with questions about the data center ordinance, saying they were not afraid of hard conversations. "We're not in the back room. There's been no executive sessions about a data center."





June 16, 2026 – “Rusty is preemptively conducting a breakfast, lunch and dinner with a couple each of the Americus council to pave the way for a Liberty visit with Americus and Sumter County officials.”

From: Susan Warner <susan_warner@msn.com>
Sent: Tuesday, June 16, 2026 1:42 PM
To: Jackie Caroe <caroe@khlawfirm.com>
Cc: Tony Di Benedetto <tony@launchcapital.ca>; Rusty Warner <rustywarner@msn.com>
Subject: Re: Purchase and Sale Agreement - Liberty Data Centers

Hi Jackie!

We have been trying to help Jimmy with the Economic Development Agreement. Thank you so much for the Americus Tech Campus literature! In addition to the Tech Campus literature and Exhibit B, we have also asked Jimmy to include the following:

Within the Economic Development Agreement-Clawback

1. For any violations, the city will issue a cease-and-desist notice until the violation is cured.
1. Receive \$470K if clawback is needed. This is the amount on our books and what it is assessed.

General Agreement-Clawback

Follow City/Other Ordinances Regarding:

1. Sound
1. Noise
1. Vibrations
1. Certificate of Occupancy
1. Outdoor Lighting
1. Required buffers
1. Parking
1. Environmental
1. Building and Fire Safety

Other:

1. Hook to city water and sewer
1. No wells

All is still moving forward, however, slowly. Rusty is preemptively conducting a breakfast, lunch, and dinner with a couple each of the Americus council to pave the way for a Liberty visit with Americus and Sumter County officials. Rusty will be contacting Tony on Wednesday with results.



June 23, 2026:
“It was great
meeting
everyone.”

Re: Thank you

From Tony Di Benedetto <tony@launchcapital.ca>

Date Tue 6/23/2026 9:51 AM

To Rusty Warner <rustywarner@msn.com>; Paul Di Benedetto <paul@boltdigitaltech.com>;
Susan Warner <susan_warner@msn.com>; Justin Di Benedetto <justin@launchcapital.ca>

Rusty - thanks. It was great meeting everyone. Looking forward to moving to next steps. Paul's going to get a new pair of construction boots :)

Tony Di Benedetto
CEO

Launch Capital Inc.
416-791-9399
www.launchcapital.ca



June 23, 2026: “I truly appreciate everything you guys did for me last night. I feel we gave total buy in and smooth sailing ahead.”

From: Rusty Warner <rustywarner@msn.com>

Sent: Tuesday, 23 June 2026 09:40:32

To: Tony Di Benedetto <tony@launchcapital.ca>; Paul Di Benedetto <paul@boltdigitaltech.com>; Susan Warner <susan_warner@msn.com>

Subject: Thank you

Hey Guys,

I truly appreciate everything you guys did for me last night. I feel we gave total buy in and smooth sailing ahead.

The investment and project itself will make and do amazing things for the community.

I am pushing to get the agreement done this week and get this project rolling. Please let me know if you need anything from us.

Rusty

Get [Outlook for iOS](#)

“Because of the inconvenience, we will pick up the hotel room(s).”

Called special meeting: Notice to the ATR
“They don’t have to publish it in the newspaper but hold the notice at their office should someone ask.”

From: Susan Warner <susan_warner@msn.com>
Sent: Tuesday, 23 June 2026 19:17:48
To: Tony Di Benedetto <tony@launchcapital.ca>
Cc: Rusty Warner <rustywarner@msn.com>
Subject: Re: Monday, July 13

Hi!

Jimmy wants us to have a special called meeting to sign the documents before our next regular meeting, since you need an earlier close. I need to alert the public through the Americus Times once I have confirmation that the board can meet. So, we are thinking about next Tuesday or Wednesday of next week, at 2 p.m. A called meeting is short notice but has to be sent to the Times. They do not have to publish it in the newspaper, but hold the notice at their office should someone ask.

Jimmy [Skipper] is afraid we will have a possibly large attendance through word of mouth.”

Our thinking is:

- Jimmy will have everything ready this week, but there is room for correction.
- The public will have a chance to express their opinions if anyone attends.
- The board will vote to sign, then sign.

Jimmy is afraid we will have a possibly large attendance through word of mouth. So, would one or more of you be able to come back on Tuesday or Wednesday of next week—in case we need your answers?

If so, please choose the date.

Because of the inconvenience, we will pick up the hotel room(s).

We are trying to resolve this and are getting closer,

Susan

We obtained the Environmental 1 study through Open Records Request.

The PDA complied; the City and County did not.

**THE CITY OF AMERICUS
AND
THE SUMTER COUNTY BOARD OF
COMMISSIONERS**

**HAVE NOT COMPLIED WITH
GEORGIA'S OPEN RECORD LAWS!**



SUMTER COUNTY
CITIZENS FOR TRANSPARENCY



Transparency is not a favor
a government gives its citizens.



It is an obligation
imposed by Georgia law.



Under O.C.G.A. § 50-18-71(b)(1)(A), when responsive records exist but cannot be produced within **three business days**, the agency must provide within that period:

- ✓ A description of the responsive records, and
- ✓ A timeline for when those records will be available.

**“
We shouldn't have
to tell our elected
officials that they
need to follow
the law!
”**



Open Records: Environmental 1 Study

■ PRIMARY SOURCE · 424 PAGES

Environmental Survey ↓

■ PRIMARY SOURCE

Ordinance Draft ↓

 SUMTER CITIZENS FOR
TRANSPARENCY
COMMUNITY RESEARCH DESK

/

 Search the
desk

Sign the
petition ↗

Research
notes ↗

Calendar
↗

Contact
officials ↗

Message
board ↗

Community
desk ↗

Kirk Lyman-B...

Sign
out

■ CITIZEN RESEARCH FOR SUMTER COUNTY

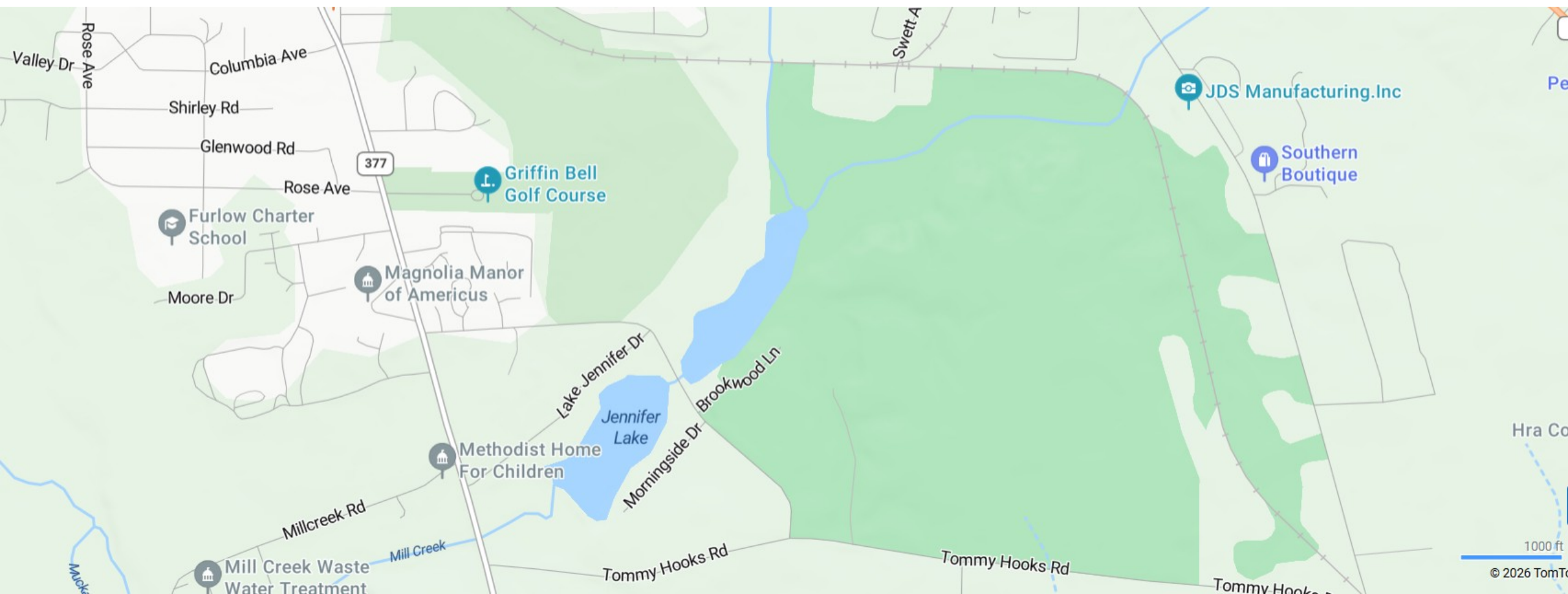
Bring facts.
Ask for *answers.*

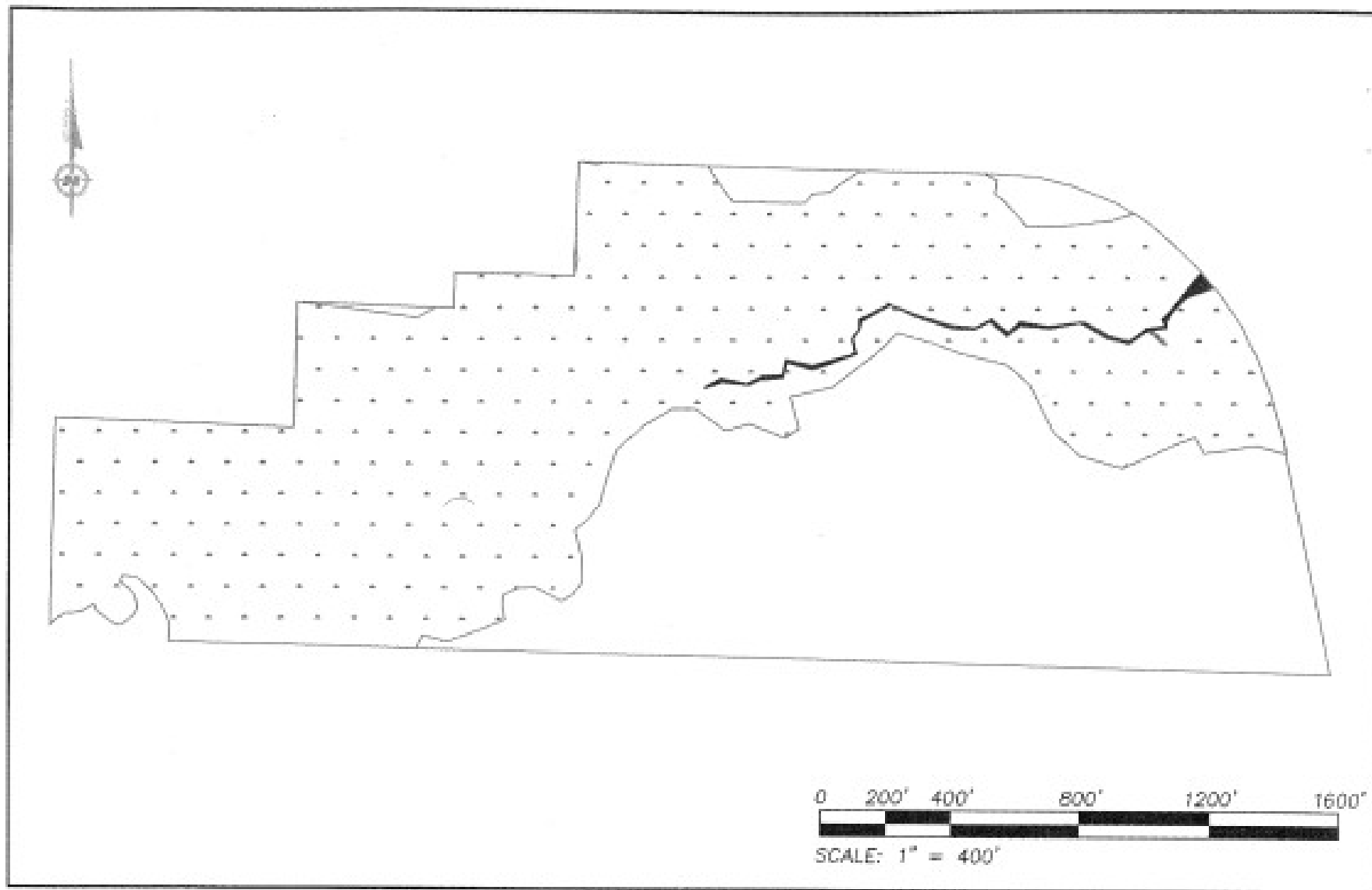
Americus Times Recorder: August 5, 2026

- Rusty Warner, executive director of the Sumter County Development Authority, also spoke about the site. “We already did a phase one environmental study, and it did not warrant a phase two. And then we also did a wetland study.” Warner stated the study gave them outlines on how they can use the property.

SCC4T.COM







Legend	
	= Approximate Project Boundary (~101.91 acres)
	= Wetland Area (~61.47 acres; 59.18%)
	= Perennial Stream (~1,862 LF; 0.42 acres; 0.40%)
	= Ephemeral Stream (~69 LF; 0.01 acres; 0.005%)

Project Manager	MS	Project No.	HQ21160
Drawn by:	RL	Scale:	AS: 1:400
Checked by:	MS	File Name:	25_128
Approved by:	JC	Date:	08/10/21



Wetland Delineation Map
FERC Brownfield Assessment Grant Services 3000 Avenue 500 Decaturville, TN 37027 615.426.1111 www.fercbrownfield.com

Exhibit
1



Cana

Swett Ave



Play

Google Maps ⓘ



Fly around





Mill Creek



Play

Google Maps



Fly around



Mill Creek



Play

Google Maps



Fly around





Play

Google Maps



Fly around





Murphys Mill Pond

▶ Play

Google Maps ⓘ

✕
Fly around



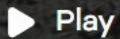


Sumter Solutions



Murphys Mill Pond

Brookwood Ln



Play

×

Fly around







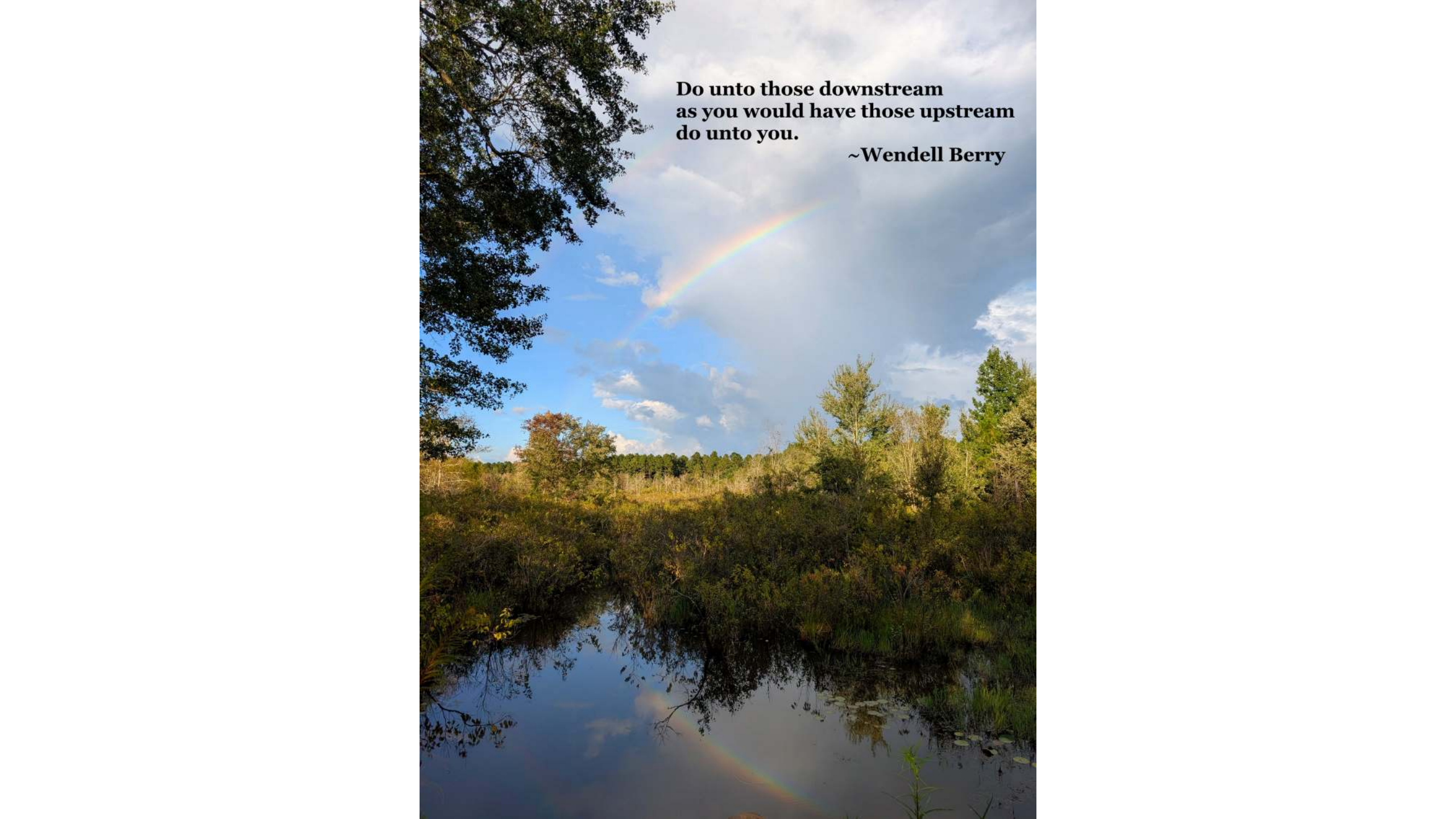
▶ Play

✕
Fly around







A landscape photograph of a river or stream. In the foreground, the water is calm, reflecting the sky and the surrounding trees. A vibrant rainbow is visible in the sky, arching from the left side towards the center. The sky is filled with soft, white clouds. The background is a dense line of trees, some with green foliage and others with autumn-colored leaves. The overall scene is peaceful and scenic.

**Do unto those downstream
as you would have those upstream
do unto you.**

~Wendell Berry

Current ordinance passed by Zoning Board

(1) *Sound.*

- i. Facilities may not emit noise that exceeds 55 decibels (db) measured at the exterior property line. With an application for rezoning, a sound study of the proposed property shall be submitted showing ambient noise levels at the exterior property line prepared to industry standards. If noise levels exceed the allowable threshold, the developer or property owner shall implement mitigation measures including, but not limited to acoustically treated enclosures for generators, colling systems, and other operations

equipment. All mitigation measures shall be designed to attune sound impacts on adjacent property which can be achieved through directing sound upward or other methods.

- ii. All facilities will adhere to nuisance requirements related to noise as found in Article IV of Chapter 62 of the City Code of the City of Americus.
- iii. Prior to the issuance of a Certificate of Occupancy for each building and with all systems functioning, a sound study showing compliance with this section shall be provided to City of Americus. Said sound study shall follow industry standards.

What type of sound study?

Who developed the industry standards?

Do they include constant 24/7/365 infrasound measurements?

Who is going to monitor the post-development sound?

What are the penalties and remedies for violations?

Americus Noise Violations: Existing Enforcement Remedies

City of Americus Code § 1-8 — General Penalty

**UP TO
\$1,000
PER OFFENSE**

For a continuous Code violation, each day is a separate offense.

1

Citation / Conviction

Fine up to \$1,000; other penalties are also authorized.

2

Each Day = Separate Offense

A continuous violation can generate a new offense every day it continues.

3

Administrative Remedies Preserved

The penalty does not prevent suspension/revocation of a license, permit or franchise where separately authorized.

4

Continuous Violation = Public Nuisance

The City may pursue injunctive or other equitable relief to abate the violation.

TAKEAWAY: A continuing noise violation can be penalized daily, treated as a public nuisance, and pursued through equitable relief.

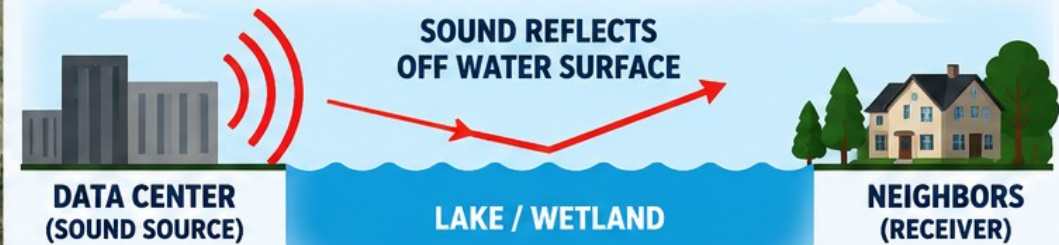
WATER IS NOT A SOUND BARRIER

Sound can travel across lakes and wetlands



SOUND TRAVELS OVER WATER

The water surface reflects sound back toward shore, allowing it to travel long distances.



Peer-reviewed field research confirms that sound traveling over water depends on atmospheric conditions and interactions with the reflective water surface.

For a lake or wetland corridor, sound propagation should be MODELED AND MEASURED — not assumed to be blocked by water.



Source: Miksis-Olds, J. L., et al. (2024). Experimental characterization of littoral atmospheric acoustics: Concurrent meteorological and acoustic observations. *The Journal of the Acoustical Society of America*, 156(2), 740–753.

REAL SCIENCE.
INFORMED DECISIONS.
STRONGER COMMUNITIES.



INFRASOUND: WHY A dBA-ONLY NOISE LIMIT MAY MISS PART OF THE PICTURE

DEFINITION

Infrasound is sound below 20 Hz — below the conventional lower limit of human hearing.

HOW IT BEHAVES

Very low frequencies have long wavelengths. The article explains that infrasound can bend around obstacles, pass through walls, and lose less energy over distance than higher-frequency sound.

WHY DATA CENTERS MATTER

The article identifies industrial ventilation systems, fans, compressors, pumping stations, air-conditioning systems, diesel equipment and gas turbines as man-made sources of low-frequency vibration.

WHY THE ORDINANCE MATTERS

A property-line limit stated only in dBA does not describe the frequency content of the noise. For a large mechanical campus, regulators should consider whether low-frequency and tonal noise need separate measurement criteria.

KEY ORDINANCE QUESTION: Does a 55 dBA property-line limit adequately address persistent low-frequency or tonal noise?

INFRASOUND CAN HAVE BIOLOGICAL EFFECTS

Evidence Exists — More Research Is Needed



HUMANS



**Can affect
the brain.**



BIRDS



**Effects
not yet known.**



BEEES



**Effects
not yet known.**



AMPHIBIANS



**Effects
not yet known.**

MORE RESEARCH IS NEEDED

**to understand the potential effects of infrasound on people and local wildlife
in real-world conditions.**

Source: Frontiers. (2026). Systematic evaluation of cerebral injury stimulating by underwater infrasound.

Frontiers in Physiology, 14, 1803881. <https://www.frontiersin.org/journals/physiology/articles/10.3389/fphys.2026.1803881/full>



And farmers are worried about potential impact on the famous Georgia Longhorns



Occasionally spotted on Tommy Hooks Road



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Infrasound and Human Health: Mechanisms, Effects, and Applications

by Maryam Dastan ¹ , Ellen Dyminski Parente Ribeiro ² , Ursula Bellut-Staack ³ ,
Juan Zhou ¹  and Christian Lehmann ^{1,*} 

¹ Department of Anesthesia, Pain Management and Perioperative Medicine, Dalhousie University, Halifax, NS B3H 4R2, Canada

² Faculty of Medicine, Federal University of Parana, Curitiba 80060-240, PR, Brazil

³ Independent Researcher, 14089 Berlin, Germany

* Author to whom correspondence should be addressed.

Appl. Sci. **2026**, *16*(3), 1553; <https://doi.org/10.3390/app16031553>

Submission received: 13 January 2026 / Revised: 29 January 2026 / Accepted: 2 February 2026 / Published: 3 February 2026

(This article belongs to the Section **Applied Biosciences and Bioengineering**)

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Further studies need to be done

Abstract

Infrasound, physically defined as sound at frequencies below 20 Hertz, can travel long distances with minimal attenuation and permeate biological tissues due to its marked particle displacement and deep penetration. Generated by both natural phenomena and human-made systems, infrasound has drawn increasing scientific and public attention regarding its potential physiological and psychological effects. Experimental studies demonstrate that infrasound can modulate mechanosensitive structures at the cellular level, particularly pressure-sensitive ion channels such as PIEZO1 and TRPV4, leading to intracellular calcium influx, oxidative stress, altered intercellular communication, and in some settings, apoptosis. These responses vary according to sound pressure levels, frequencies, exposure duration, and tissue type. In the cardiovascular system, higher sound pressures have been associated with mitochondrial injury and fibrosis, whereas low sound pressures may exert context-dependent protective effects. In animal models, prolonged or intense exposure to infrasound has been shown to induce neuroinflammatory responses and memory impairment. Short-term studies in humans at moderate intensities have reported minimal physiological changes, with psychological and contextual factors influencing symptom perception. Occupational environments such as factories and agricultural settings may contain elevated levels of infrasound, underscoring the importance of systematic measurements and exposure assessments. At the same time, controlled infrasound stimulation has shown potential as an adjunct modality in bone repair and tissue regeneration, highlighting its dual capacity as both a biological stressor and a possible therapeutic tool. Overall, existing data indicate that infrasound may be harmful at chronic exposure depending on intensity and frequency, yet beneficial when precisely regulated. Future research should standardize exposure metrics, refine measurement technologies, and clarify dose–response relationships to better define the health risks and therapeutic applications of infrasound.

INSIDE META'S NEW \$1.2 BILLION DATA CENTER

KUNA, IDAHO • SEPTEMBER 2026

85°F

SERVER HALLS

EARPLUGS

PROVIDED TO WORKERS

**“JET ENGINE
AT IDLE”**

FAN NOISE DESCRIPTION

A NEW HYPERSCALE DATA CENTER: HOT ENOUGH FOR 85°F SERVER HALLS — LOUD ENOUGH THAT WORKERS ARE GIVEN EARPLUGS.

Important: the story reports no measured dBA level and does not establish exterior/community noise levels.

SOURCE: Mark Dee, Idaho Statesman / Hagadone News Network, Sept. 4, 2026.

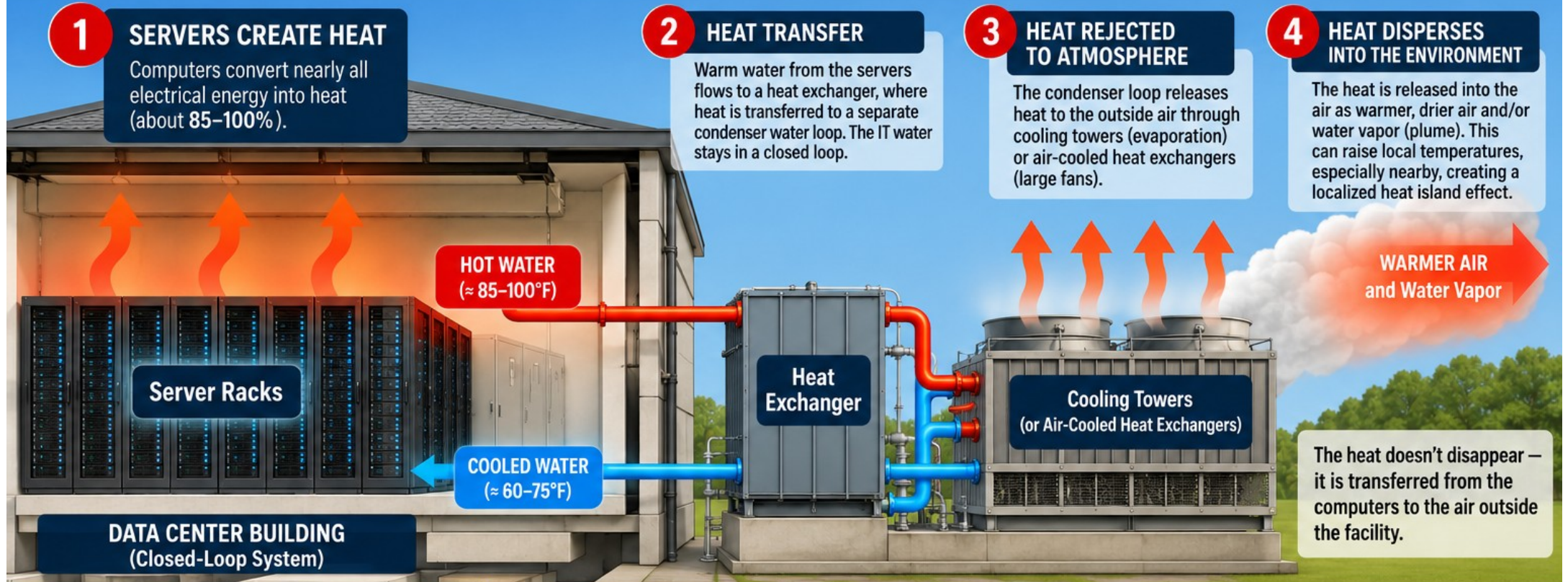
Let's talk about a heat island next to the wetlands

**They say it is just like
a radiator.**



In a Closed-Loop Cooling System, Heat **Still Has to Go Somewhere**

A closed-loop system reuses water, but it does not eliminate heat — it moves the heat from inside the building to the outside air.



KEY TAKEAWAY:

A closed-loop system saves water, but it does not eliminate heat. All of the heat generated by the computers must be released to the outside environment.

WHERE THE HEAT GOES:

- From servers → to warm water (inside closed loop)
- To a heat exchanger → transfers heat to condenser loop
- To cooling towers or large fans → released to outside air
- Into the atmosphere → as warmer air (and water vapor)

POTENTIAL LOCAL IMPACTS:

- Higher ambient temperatures near the facility
- Warm, moist air plumes
- Localized heat island effect (documented in scientific studies)
- Can affect nearby neighborhoods, vegetation, and ecosystems

Same energy in. Same heat out. The only question is where it affects our community.



Data Center Waste Heat as an Emerging Urban Thermal Hazard: First Field Measurements of Neighborhood-Scale Air Temperature Impacts

David J. Sailor, Soroush Samareh Abolhassani, Eli P. Martin

Geographical Sciences and Urban Planning, School of (SGSUP)

Research output: Contribution to journal > Article > peer-review

2
Scopus
citations



 Overview  Fingerprint

Abstract

Data centers are among the fastest-growing sources of concentrated anthropogenic heat in urban environments. Despite heat flux densities that exceed peak solar irradiance by a factor of 2–6, their thermal impacts on adjacent communities have never been directly measured or reported in the peer-reviewed literature. This short communication addresses that gap by presenting the first vehicle-based traverse measurements of air temperature in residential neighborhoods downwind of operational data centers. Five traverses at four facilities in the Phoenix, Arizona metropolitan area, ranging from a 36 MW single-building data center in Mesa to a 169 MW colocation campus in Chandler, reveal downwind air temperature warming as high as 2.2 °C, with average downwind air temperatures 0.7–0.9 °C warmer than corresponding upwind areas. Thermal signatures were detectable at distances up to 500 m from facility perimeters. The 36 MW Mesa facility rejects waste heat equivalent to the electricity consumption of approximately 40,000 households, while the 169 MW Chandler campus is equivalent to over 180,000 households, both concentrated into footprints smaller than a single residential subdivision. With U.S. data center capacity projected to more than double by 2030, these findings establish data center anthropogenic waste heat as a previously undocumented urban thermal hazard demanding attention from the data center and urban planning communities.

Access to Document

 [10.1115/1.4071922](https://doi.org/10.1115/1.4071922)

Other files and links

 [Link to publication in Scopus](#)

Original language	English (US)
Article number	024501
Journal	Journal of Engineering for Sustainable Buildings and Cities
Volume	7
Issue number	2
State	Published - May 1 2026

Further studies need to be done.

Are you catching on to the theme here?

Phase I Environmental Site Assessment

RVRC Brownfield Assessment Grant Services

125.1 Acres off Swett Avenue

Swett Avenue

Americus, Sumter County, GA

Tax Parcel Number 64-17

Acres ID Number 252233

June 30, 2022

Terracon Project No. HP217183, Task 03C14



Prepared for:

River Valley Regional Commission

Columbus, Georgia

EPA Brownfield Assessment Cooperative Agreement BF-00D94519-0

Prepared by:

Terracon Consultants, Inc.

Columbus, Georgia

terracon.com

Terracon

Environmental



Facilities



Geotechnical



Materials



EPA Definition: Brownfield Site

“real property, the expansion, redevelopment, or reuse of which may be complicated by the presence or potential presence of a hazardous substance, pollutant or contaminant”

Source: U.S. EPA, Environmental Contamination at Brownfield Sites; CERCLA §101(39).

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From: Rusty Warner <RustyWarner@msn.com>

Sent: Thursday, 09 July 2026 17:41:51

To: Jackie Caroe <caroe@khlawfirm.com>; Susan Warner <susan_warner@msn.com>

Cc: Jimmy Skipper <jskipper@americuslaw.com>; Tony Di Benedetto <tony@launchcapital.ca>; Paul Di Benedetto <paul@boltdigitaltech.com>

Subject: Re: Purchase and Sale Agreement - Liberty Data Centers

From the PDA Open Records

Jackie,

Check with Paul and Tony about this. Also, they don't have the option to see back to the city. The development authority is the owner, and we are in that role. Why would the city have that option?

Get with Tony and Paul then let's move forward.

Everyone just stop and breathe. I'm sure all will be fine.

Thank you,

Rusty

Get [Outlook for iOS](#)

From: Jackie Caroe <caroe@khlawfirm.com>

Sent: Thursday, 09 July 2026 17:32:50

To: Susan Warner <susan_warner@msn.com>

Cc: Jimmy Skipper <jskipper@americuslaw.com>; Rusty Warner <RustyWarner@msn.com>; Tony Di Benedetto <tony@launchcapital.ca>; Paul Di Benedetto <paul@boltdigitaltech.com>

Subject: RE: Purchase and Sale Agreement - Liberty Data Centers

I will confirm with them, but since they have the right to sell the property back to the city for \$1, they were planning on doing most of the due diligence after we closed.

Thanks,



Jackie A. Caroe

Senior Associate

Tel: 404-835-9394

Email: caroe@khlawfirm.com

There was so much confidence in the Liberty Data Center developers, even the people tasked to build a data center ordinance had not read the Terracon Brownfield Study.

They also didn't consult with the citizens who elected them.

Sumter County
Citizens For
Transparency
Speaking with the
Mayor
of Americus



**Size and scale
matter on a tight
footprint.**

**The proposed 400 MW
Liberty Hyperscale Data
Center is four 100,000 sq ft
buildings.**

**This proposed campus
would be bigger than 2
times the size of the
Americus Walmart,
plus approximately 40,000
more square ft.**



EXHIBIT C

Preliminary DRAFT Renderings – Americus Tech Campus

To be located off the southern boundary of Swett Ave, Americus, Georgia.



Estimated Campus Size – 1,190' x 1,150' = 31.4 Acres

Based on the rendering with four 100,000 sq. ft. buildings, located on the north side of Swett Ave, Americus, Georgia



CAMPUS DIMENSIONS

Length (north – south):

1,190 feet

Width (east – west):

Total Area

$1,190' \times 1,150' = 1,368,500$ sq. ft.

$1,368,500 \div 43,560 =$

31.4 acres

Building Footprint

(Four data center buildings)

400,000 sq. ft. (9.2 acres)

≈ 29% of total campus

Remaining Area

(roads, parking, substation, warehouse, innovation center, setbacks, landscaping, etc.):

≈ 22.2 acres (≈ 71%)

LINE	BEARING	DISTANCE
L1	N 14°46'56" W	148.98
L2	N 20°30'55" W	148.69
L3	N 89°17'08" W	148.31
L4	N 88°49'43" W	148.84
L5	S 01°39'25" W	329.37
L6	N 88°29'11" W	435.85
L7	S 01°41'11" W	149.74

*CHORD

CURVE	DELTA ANGLE	RADIUS	LENGTH	CHORD BEARING	CHORD DISTANCE
C1	51°28'38"	893.87	818.68	N 89°09'27" W	783.77

SURVEY NOTES

THE LAND SURVEYOR WHOSE SEAL IS AFFIXED HERETO HAS NOT BEEN PROVIDED A CURRENT TITLE OPINION OR ABSTRACT OF TITLE OF THIS PROPERTY, OR MATTERS AFFECTING THIS PROPERTY; IT IS POSSIBLE THAT THERE ARE RECORDED OR UNRECORDED DEEDS, EASEMENTS, OR OTHER INSTRUMENTS THAT MAY AFFECT THIS PROPERTY. THIS PLAT REFLECTS NO RESEARCH AS TO ZONING OR PRESENCE OF WETLANDS.

THIS SURVEY WAS PERFORMED USING JAVAD TRIUMPH LS+ BASE & ROVER, DUAL FREQUENCY RECEIVERS. THE RESULTANT FIELD DATA HAS A RELATIVE POSITIONAL ACCURACY OF <0.10' AT THE 90% CONFIDENCE LEVEL.

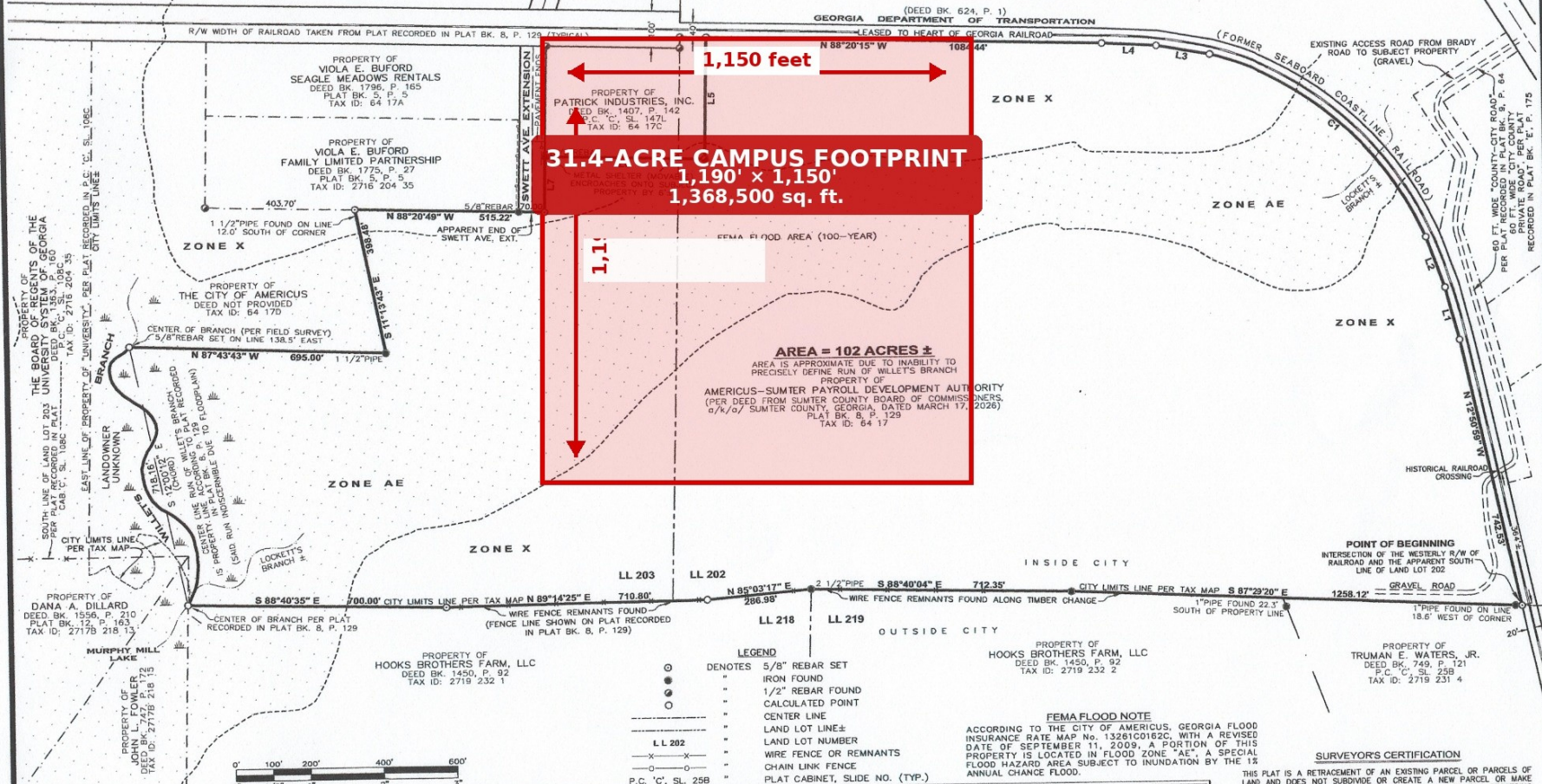
THIS PLAT HAS BEEN CALCULATED FOR CLOSURE AND HAS BEEN FOUND TO HAVE A CLOSURE PRECISION OF ONE FOOT IN 2,815,500 FEET. ALL DISTANCES SHOWN ARE HORIZONTAL GROUND DISTANCES.

NO NATIONAL GEODETIC SURVEY MONUMENTS WERE FOUND WITHIN 500 FEET OF ANY POINT OF THE PROPERTY PLATTED, OR ANY POINT OF REFERENCE THEREON.

THE CERTIFICATION, AS SHOWN HEREON, IS PURELY A STATEMENT OF PROFESSIONAL OPINION BASED ON KNOWLEDGE, INFORMATION AND BELIEF, AND BASED ON EXISTING FIELD EVIDENCE AND DOCUMENTARY EVIDENCE AVAILABLE. THE CERTIFICATION IS NOT AN EXPRESSED OR IMPLIED WARRANTY OR GUARANTEE.

THIS SURVEY COMPLIES WITH BOTH THE RULES OF THE GEORGIA BOARD OF REGISTRATION FOR PROFESSIONAL ENGINEERS AND LAND SURVEYORS AND THE OFFICIAL CODE OF GEORGIA ANNOTATED (O.C.G.A.) 15-6-67, AS AMENDED BY HB 1004 (2015), IN THAT WHERE A CONFLICT EXISTS BETWEEN THOSE TWO SETS OF SPECIFICATIONS, THE REQUIREMENTS OF LAW PREVAIL.

THIS BLOCK RESERVED FOR THE CLERK OF SUPERIOR COURT



PLAT OF RETRACEMENT SURVEY FOR:
AMERICUS-SUMTER PAYROLL DEVELOPMENT AUTHORITY
 LYING IN LAND LOTS 202 & 203, 27th LAND DISTRICT
 CITY OF AMERICUS, SUMTER COUNTY, GEORGIA



JN: C-6182
 SHEET 1 OF 1

LANGFORD & ASSOCIATES, INC.
 PROFESSIONAL LAND SURVEYORS
 CONSULTING FORESTERS
 P.O. BOX 240 - 3054 CALHOUN STREET
 SHELLMAN, GA 39886
 TEL: 229 - 679 - 5072 FAX: 229 - 679 - 2160
 WEB: LANGFORDANDASSOCIATESINC.COM
 FIRM CERTIFICATE OF AUTHORIZATION NO. LSF000332



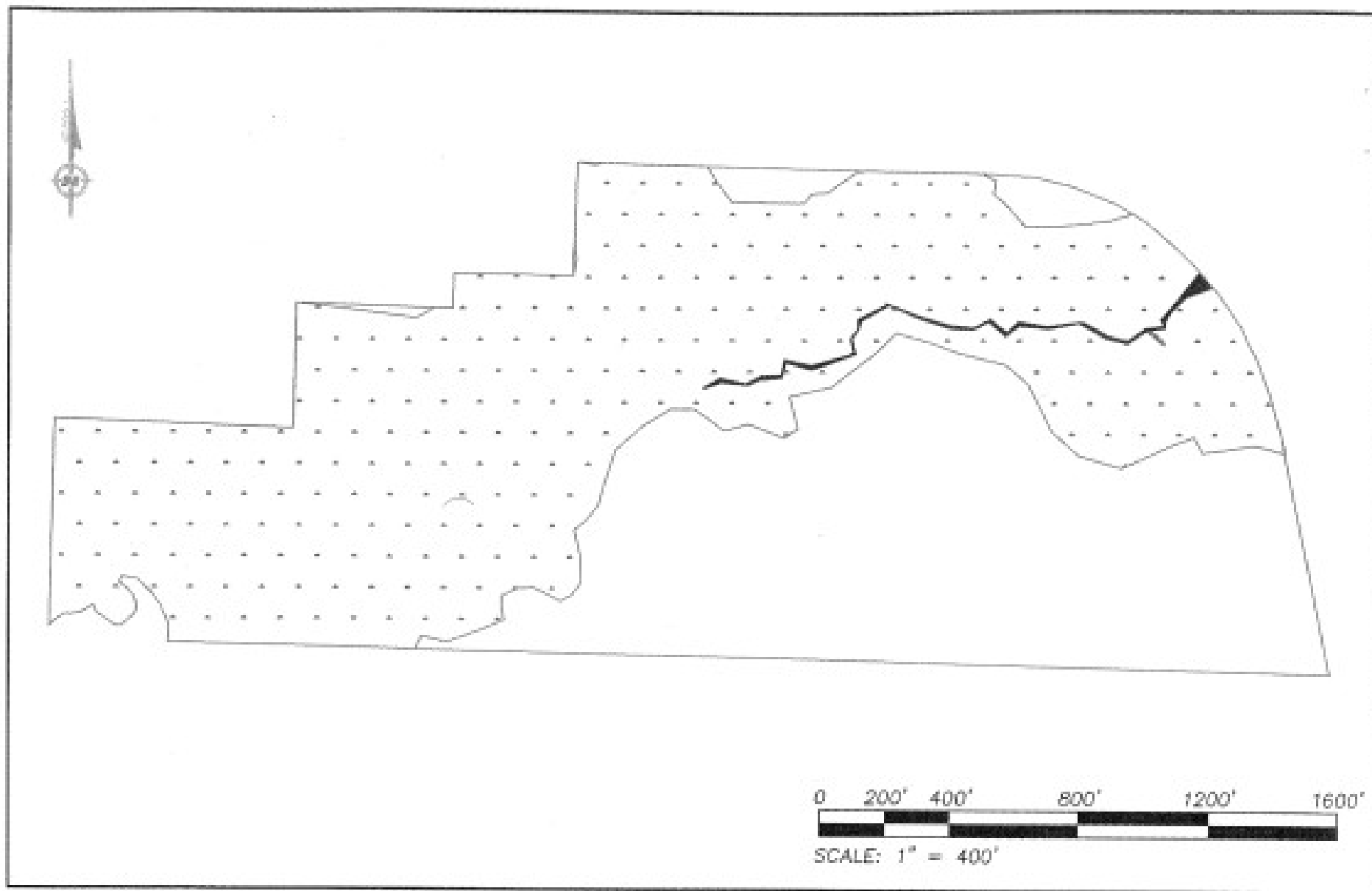
GARLS NO. 3172

FEMA FLOOD NOTE
 ACCORDING TO THE CITY OF AMERICUS, GEORGIA FLOOD INSURANCE RATE MAP No. 13261C0182C, WITH A REVISED DATE OF SEPTEMBER 11, 2009, A PORTION OF THIS PROPERTY IS LOCATED IN FLOOD "ZONE AE", A SPECIAL FLOOD HAZARD AREA SUBJECT TO INUNDATION BY THE 1% ANNUAL CHANCE FLOOD.

SURVEYOR'S CERTIFICATION

THIS PLAT IS A RETRACEMENT OF AN EXISTING PARCEL OR PARCELS OF LAND AND DOES NOT SUBDIVIDE OR CREATE A NEW PARCEL OR MAKE ANY CHANGES TO ANY REAL PROPERTY BOUNDARIES. THE RECORDING INFORMATION OF THE DOCUMENTS, MAPS, PLATS, OR OTHER INSTRUMENTS WHICH CREATED THE PARCEL OR PARCELS ARE STATED HEREON. RECORDED INFORMATION OF THIS PLAT DOES NOT IMPLY APPROVAL OF ANY LOCAL JURISDICTION, AVAILABILITY OF PERMITS, COMPLIANCE WITH LOCAL REGULATIONS OR REQUIREMENTS, OR SUITABILITY FOR ANY USE OR PURPOSE OF THE LAND. FURTHERMORE, THE UNDERSIGNED LAND SURVEYOR CERTIFIES THAT THIS PLAT COMPLIES WITH THE MINIMUM TECHNICAL STANDARDS FOR PROPERTY SURVEYS IN GEORGIA AS SET FORTH IN THE RULES AND REGULATIONS OF THE GEORGIA BOARD OF REGISTRATION FOR PROFESSIONAL ENGINEERS AND LAND SURVEYORS AND AS SET FORTH IN O.C.G.A. SECTION 15-6-67.

D. SCOTT LANGFORD, LS GA. REG. NO. 3172 DATE 6/2/2026



Legend	
	= Approximate Project Boundary (~103.91 acres)
	= Wetland Area (~61.47 acres; 59.16%)
	= Perennial Stream (~1,862 LF; 0.42 acres; 0.40%)
	= Ephemeral Stream (~69 LF; 0.01 acres; 0.009%)

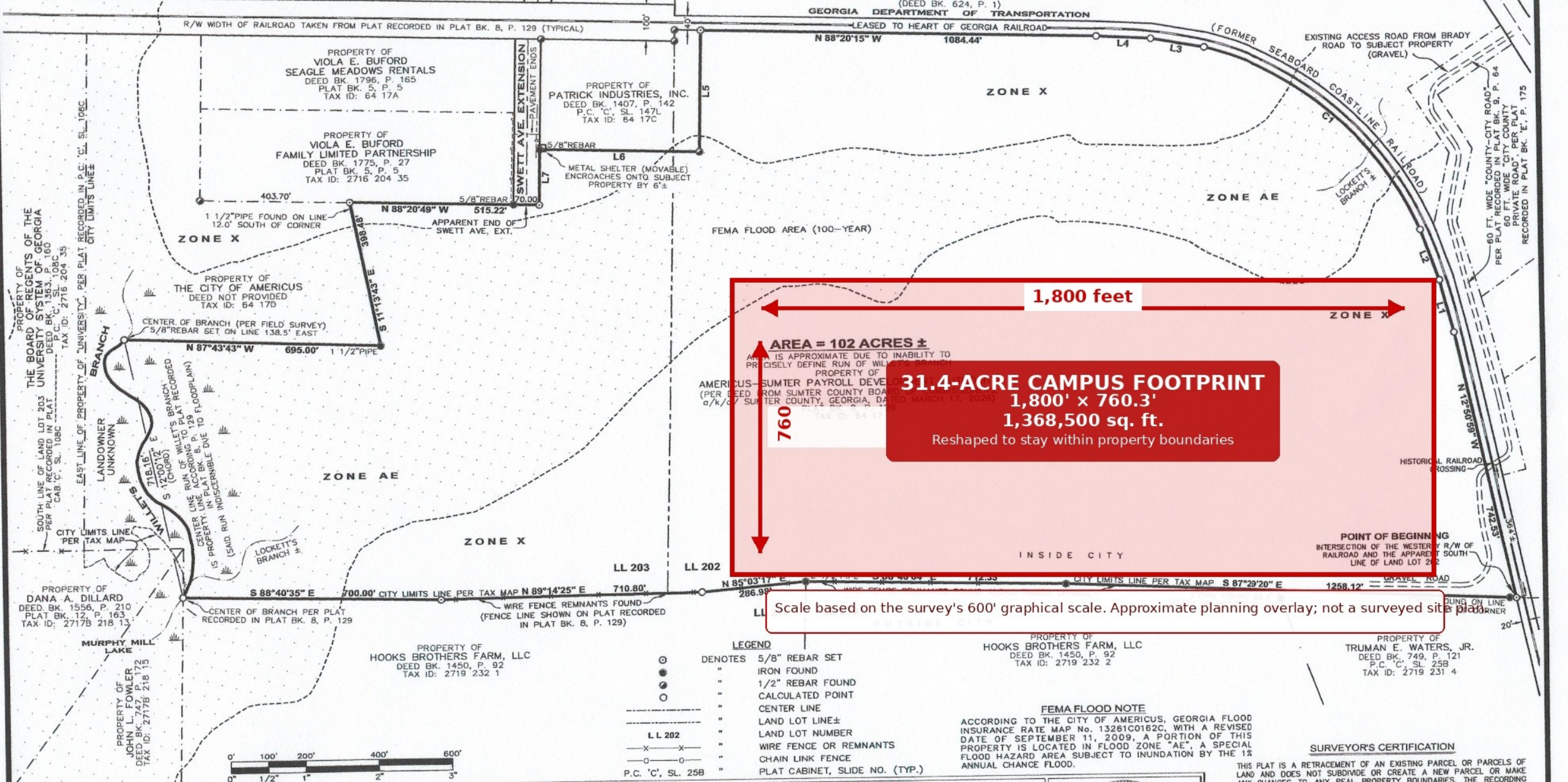
Project Manager	RS
Drawn By	RL
Checked By	MB
Approved By	JC

Project No.	HPD-01145
Scale	AS: 1"=400'
File Name	25_148
Date	FEB 2023



Wetland Delineation Map
RAEC Brownfield Assessment Grant Service 2500 Avenue 500 Deland, FL 32725 Burlington Avenue Americus, Georgia

Exhibit
1



PLAT OF RETRACEMENT SURVEY FOR:

AMERICUS-SUMTER PAYROLL DEVELOPMENT AUTHORITY

LYING IN LAND LOTS 202 & 203, 27th LAND DISTRICT

CITY OF AMERICUS, SUMTER COUNTY, GEORGIA

LANGFORD & ASSOCIATES, INC.

PROFESSIONAL LAND SURVEYORS
CONSULTING FORESTERS

P.O. BOX 240 - 3054 CALHOUN STREET
SHELLMAN, GA 39886

TEL: 229 - 679 - 5072 FAX: 229 - 679 - 2160

J.N.: C-6182

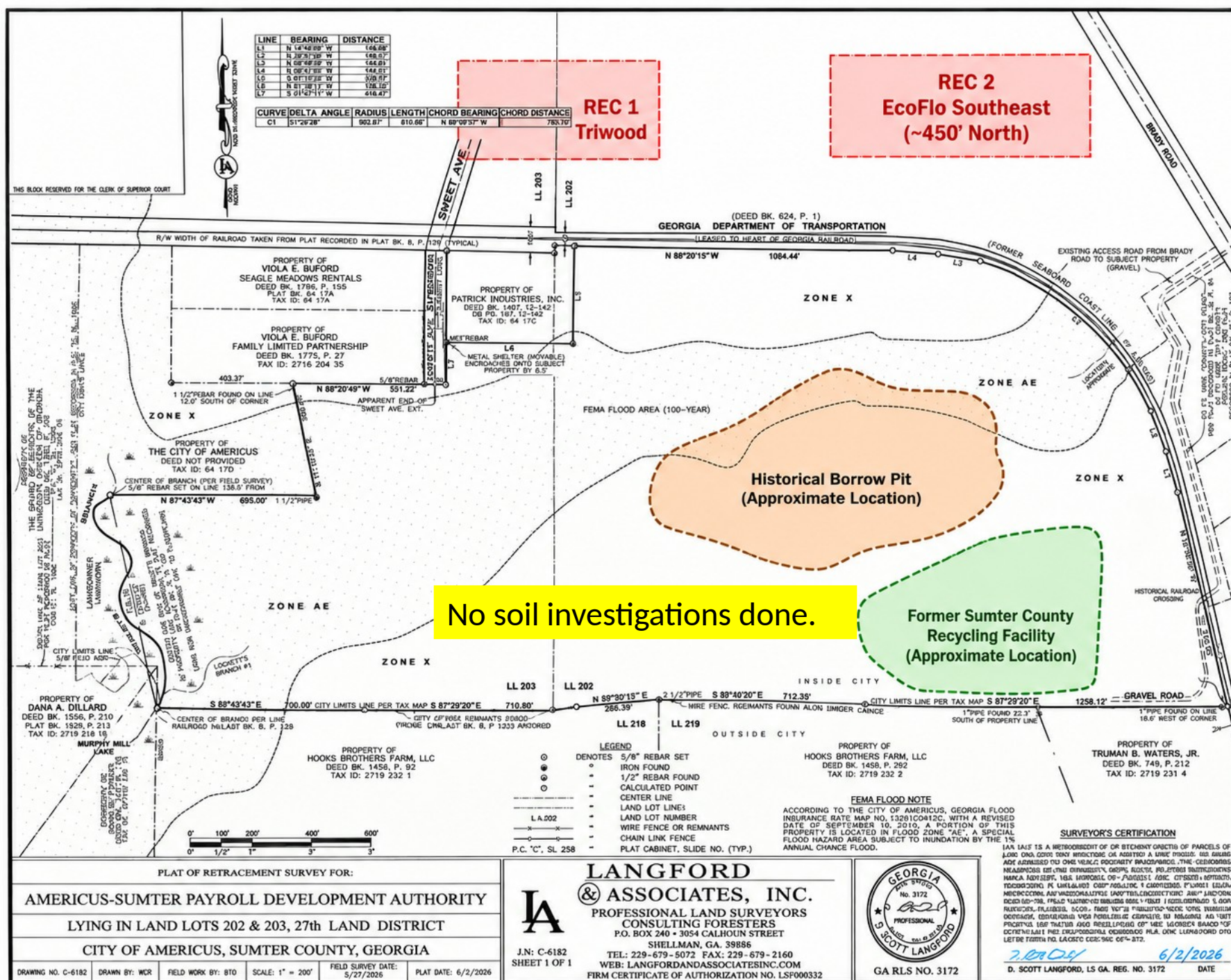


SURVEYOR'S CERTIFICATION

THIS PLAT IS A RETRACEMENT OF AN EXISTING PARCEL OR PARCELS OF LAND AND DOES NOT SUBDIVIDE OR CREATE A NEW PARCEL OR MAKE ANY CHANGES TO ANY REAL PROPERTY BOUNDARIES. THE RECORDING INFORMATION OF THE DOCUMENTS, MAPS, PLATS, OR OTHER INSTRUMENTS WHICH CREATED THE PARCEL OR PARCELS ARE STATED HEREON. RECORDATION OF THIS PLAT DOES NOT IMPLY APPROVAL OF ANY LOCAL JURISDICTION, AVAILABILITY OF PERMITS, COMPLIANCE WITH LOCAL REGULATIONS OR REQUIREMENTS, OR SUITABILITY FOR ANY USE OR PURPOSE OF THE LAND. FURTHERMORE, THE UNDERSIGNED LAND SURVEYOR CERTIFIES THAT THIS PLAT COMPLIES WITH THE MINIMUM TECHNICAL STANDARDS FOR PROPERTY SURVEYS IN GEORGIA AS SET FORTH IN THE RULES AND REGULATIONS OF THE GEORGIA BOARD OF REGISTRATION FOR PROFESSIONAL ENGINEERS AND LAND SURVEYORS AND AS SET FORTH IN O.C.G.A. SECTION 15-6-67.

4/2/2024

Any disturbance of wetlands Would require U.S. Army Corps of Engineers permitting.



Heavy construction, clearing, grading, utility installation on the north side would require additional study.

RECOGNIZED ENVIRONMENTAL CONDITIONS

What the 2022 Terracon Phase I says about the Swett Avenue tract

THE CENTRAL POINT

Terracon identified TWO off-site Recognized Environmental Conditions (RECs): EcoFlo Southeast and Triwood.

A REC is a due-diligence finding that warrants environmental attention. It is not proof that contamination has reached the Swett Avenue property.

What does “REC” mean?

The Phase I term is about environmental due diligence—not a declaration that a site is contaminated.

RECOGNIZED ENVIRONMENTAL CONDITION

A REC flags the presence or likely presence of hazardous substances or petroleum under circumstances indicating a release, past release, or material threat of release.

In practical terms: the condition is important enough to affect environmental due diligence and decisions about whether more investigation is needed.

WHAT A REC DOES NOT PROVE

It does NOT, by itself, establish that contaminants migrated onto the subject property.

It does NOT establish the concentration, extent, exposure pathway, or health effect.

Those questions generally require records review and, where warranted, intrusive sampling such as soil or groundwater testing.

The two RECs identified by Terracon

Both are off-site, north/northwest of the Swett Avenue tract.

1 | TRIWOOD

Location: immediately north / adjacent to the subject property.

Phase I history: former generator of multiple solvent wastes associated with manufactured-home-industry products.

Why it matters: proximity plus the waste history caused Terracon to classify Triwood as a REC.

2 | ECOFLO SOUTHEAST

Location: approximately 450 feet north of the site; described as up-gradient.

Phase I history: accumulation and consolidation of chemical and hazardous waste before shipment for disposal.

Why it matters: Terracon classified EcoFlo Southeast as a REC to the subject property.

Terracon's explicit trigger for more investigation

This is the most important sentence in the Phase I for a changing development footprint.

“Should conditions change, such that the western and/or northern portion of the site is considered for development, additional investigation would be necessary.”

WHY TERRACON SAID THIS

Its no-additional-work recommendation assumed the north/west REC-sensitive areas would remain largely undeveloped.

WHY IT MATTERS NOW

A Swett Avenue access route or northern construction footprint could change the assumption underlying that 2022 recommendation.

The wetlands study makes the REC question more consequential

The later field delineation shows how much of the tract's north/west is environmentally constrained.

61.47 ACRES

Terracon delineated approximately 61.47 acres of wetlands on the ~103.91-acre project area.

That is about 59% of the investigated tract.

1,862 FEET

Terracon delineated approximately 1,862 linear feet of perennial stream.

It also mapped 69 linear feet of ephemeral stream.

THE CONNECTION

The Phase I REC-sensitive north/west area overlaps the part of the property later shown to contain extensive wetlands and streams.

That makes final road, utility, grading and building locations critical.

What should be answered before northern or western disturbance?

The Phase I itself makes development location the key decision point.

- Does the current engineered site plan place roads, grading, utilities, stormwater facilities, staging, or buildings in the northern or western portion?
- Will Swett Avenue be used as a construction entrance or utility corridor through the REC-sensitive north side?
- Has a Phase II ESA—or any soil, groundwater, sediment, or surface-water sampling—been completed since the 2022 Phase I?
- Where do final construction limits fall relative to Triwood, EcoFlo, the 61.47 acres of wetlands, and the perennial stream?
- If the development footprint has changed, how was Terracon’s explicit “additional investigation” trigger addressed?

Bottom line

The Phase I did not say “nothing to worry about.” It made a conditional recommendation tied to where development would occur.

DOCUMENTED

Terracon identified EcoFlo Southeast and Triwood as RECs.

CONDITIONAL

Terracon did not recommend additional REC investigation based on the anticipated development area and the north/west remaining largely undeveloped.

TRIGGER

If the western and/or northern portion is considered for development, Terracon said additional investigation would be necessary.

Let's look at the south side of the proposed property...



What is a Borrow Pit?

Georgia law provides a useful, site-relevant definition.

Georgia: “an excavated area where naturally occurring earthen materials are to be removed for use as ordinary fill at another location.”

IN PLAIN LANGUAGE

Soil, sand, clay or similar earth is dug from one place and hauled away for use as fill somewhere else.

The excavation can leave a large, historically disturbed area.

WHY IT MATTERS

A borrow pit means the ground has been excavated and altered—not simply left as undisturbed woodland.

Later redevelopment may encounter fill, altered grades, buried material or changed drainage.

IMPORTANT LIMIT

A former borrow pit is not proof of contamination.

Environmental significance depends on what was later placed, burned, spread or buried there and whether those materials were characterized.

On the southeast side of the proposed property.....

- The most vulnerable homes to air and noise pollution and potential carcinogens that may be stirred up during construction, which is anticipated to continue to 2033.

- During operation, these families will also be most vulnerable to generator noise and pollution.



#don'tRUSHthedatacenter

Topics we don't have time to cover

- Generators
- Waste water treatment
- Water use missing from the ordinance approved by zoning
- Lack of bonds to secure decommissioning
- Real estate values
- Environmental risks during proposed construction until 2033
- Water use to produce electricity offsite



The Environmental 1 study is not enough.

Further studies need to be done.

With all these environmental concerns, does it feel like the PDA, the Mayor and City Council members are using our citizens as lab rats?



What can you do?

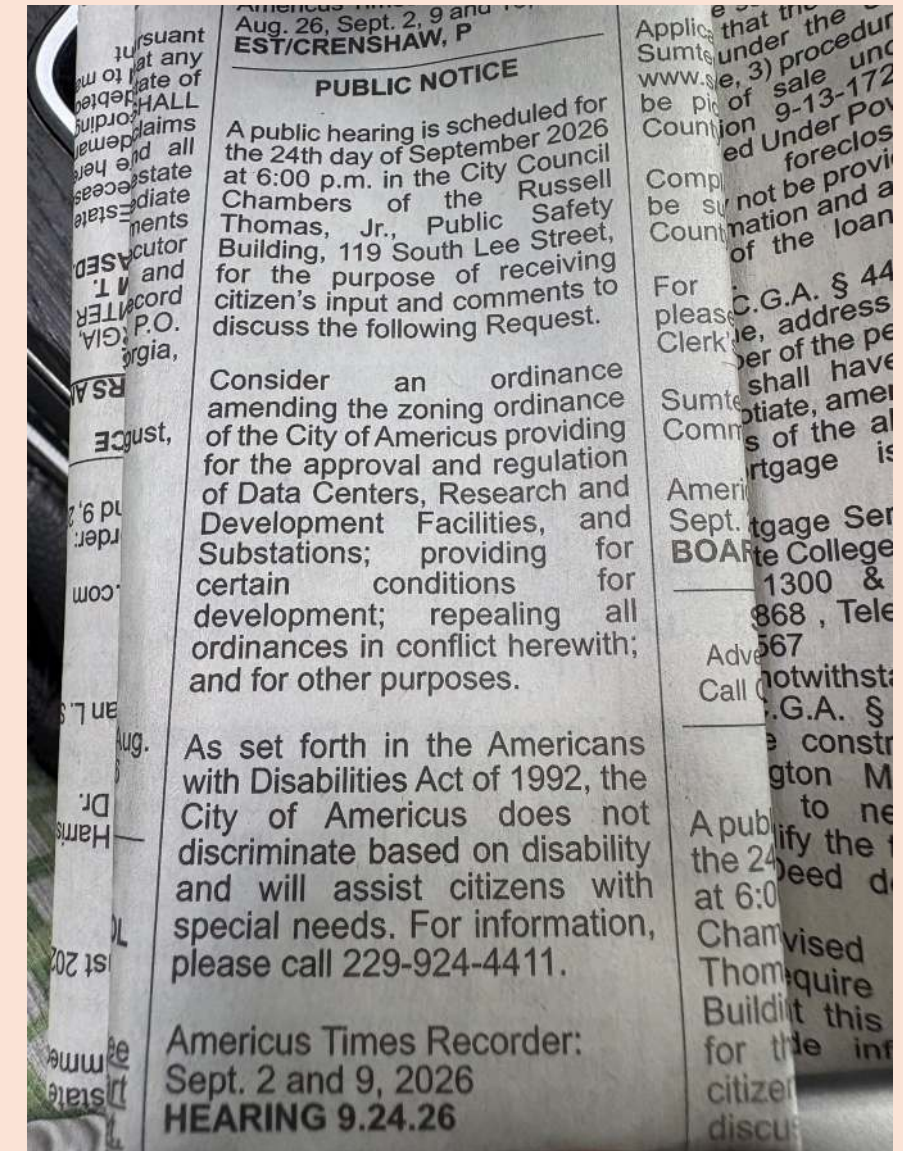
Here's an opportunity to make your voice heard.

Citizens Input and Comments are to be heard at

**The City Council Chambers.
September 24, 2026
6:00 PM**

The City is required to share their most recent draft
15 days in advance.

Please remind them that the PDA Agreement with
Liberty Data GA USA, LLC is only a civil contract and
not a City Law.



But, if you're against
rushing the data
center....

and you go to the City Council
meeting without a t-shirt,

You are living in sin!

But fear not...

Redemption is cheap and we
have t-shirts here with us
tonight.

— ORDER YOUR —
T-SHIRTS | **\$15**

DONATIONS FOR **LEGAL FEES**
— **WELCOME!** —

SAVE the MUCKALEE Crawfish

Make Checks out to **Client First Properties - Escrow Account**

SUPPORT OUR LEGAL FIGHT **PROTECT OUR COMMUNITY** **SAVE THE MUCKALEE** **TOGETHER WE CAN**

THANK YOU FOR STANDING WITH US!

Sign the 18 Month Moratorium at
<https://scc4t.com/petition/>

PETITION TO SUMTER COUNTY AND THE CITY OF AMERICUS

/ Search the desk

Sign the petition ↗

Research notes ↗

Calendar ↗

Contact officials ↗

Message board ↗

Community desk ↗

data center moratorium

Pause data center zoning and permitting in the county and the city for 18 months, until both have an ordinance.

Share this petition ↗

DELIVERED TO

The Sumter County Board of Commissioners

The Mayor and City Council of the City of Americus

Follow us on Facebook



Sumter County Citizens for Transparency

651 followers • 13 following

Community Organization



 Following

 Message

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